

**CHAPTER 16.**

An Act to amend the Old Age Pensions Act, 1908.

[18th August 1911.]

**BE** it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Calculation of  
date of attain-  
ing age of  
70 or 60.  
8 Edw. 7. c. 40.

**1.** For the purposes of the Old Age Pensions Act, 1908 (in this Act referred to as "the principal Act"), a person shall be deemed, according to the law in Scotland as well as according to the law in England and Ireland, to have attained the age of seventy or sixty on the commencement of the day previous to the seventieth or sixtieth anniversary, as the case may be, of the day of his birth.

Calculation of  
means.

**2.—(1)** In calculating, for the purpose of the principal Act, the means of a person, account shall be taken of—

- (a) the yearly value of any property belonging to that person (not being property personally used or enjoyed by him) which is invested, or is otherwise put to profitable use by him, or which, though capable of investment or profitable use, is not so invested or put to profitable use by him, the yearly value of that property being taken to be one-twentieth part of the capital value thereof ;
- (b) the income which that person may reasonably expect to receive during the succeeding year in cash, excluding any sums receivable on account of an old age pension under this Act, and excluding any sums arising from the investment or profitable use of property (not being property personally used or enjoyed by him), that income, in the absence of other means for ascertaining the income, being taken to be the income actually received during the preceding year ;
- (c) the yearly value of any advantage accruing to that person from the use or enjoyment of any property belonging to him which is personally used or enjoyed by him, except furniture and personal effects in a case where the total value of the furniture and effects does not exceed fifty pounds ; and
- (d) the yearly value of any benefit or privilege enjoyed by that person :

Provided that, where under paragraph (a) of the foregoing provisions the yearly value of any property is taken to be one-twentieth part of the capital value thereof, no account shall be taken under any other of those provisions of any appropriation of that property for the purpose of current expenditure.

(2) In calculating the means of a person being one of a married couple living together in the same house, the means shall be taken to be half the total means of the couple.

(3) The foregoing provisions of this section shall be substituted for subsections (1) and (2) of section four of the principal Act.

**3. Notwithstanding anything in the principal Act—**

Provisions as  
to nationality  
and residence.

(1) the condition as to nationality imposed by paragraph (2) of section two of the principal Act shall not be required to be fulfilled in the case of a woman who satisfies the pension authorities that she would, but for her marriage with an alien, have fulfilled the condition, and that, at the date of the receipt of any sum on account of a pension, the alien is dead, or the marriage with the alien has been dissolved or annulled, or she has, for a period of not less than two years up to the said date, been legally separated from, or deserted by, the alien :

(2) it shall be a statutory condition for the receipt of an old age pension by any person, that the person must satisfy the pension authorities that for at least twelve years in the aggregate out of the twenty years up to the date of the receipt of any sum on account of a pension he has had his residence in the United Kingdom :

Provided that for the purposes of computing the twelve years' residence in the United Kingdom under this provision—

(a) any periods spent abroad in any service under the Crown, the remuneration for which is paid out of moneys provided by Parliament, or as the wife or servant of a person in any such service so remunerated ; and

(b) any periods spent in the Channel Islands or the Isle of Man by a person born in the United Kingdom ; and

(c) any periods spent abroad by any person during which that person has maintained or assisted in maintaining any dependent in the United Kingdom ; and

(d) any periods of absence spent in service on board a vessel registered in the United Kingdom by a person who before his absence on that service was living in the United Kingdom ; and

(e) any periods of temporary absence not exceeding three months in duration at any one time ;

shall be counted as periods of residence in the United Kingdom.

Amendments  
of section 3 of  
the principal  
Act.

4.—(1) Any rule of law and any enactment, the effect of which is to cause relief given to or in respect of a wife or relative to be treated as relief given to the person liable to maintain the wife or relative, shall not have effect for the purposes of section three of the principal Act (which relates to disqualification).

(2) Two years shall be substituted for ten years as the further period of disqualification under subsection (2) of section three of the principal Act, both as respects persons convicted before the passing of this Act, and, as respects persons convicted after the passing of this Act, in cases where the term for which a person has been ordered to be imprisoned without the option of a fine does not exceed six weeks.

61 & 62 Vict.  
c. 60.

(3) Any person in receipt of an old age pension who is convicted of any offence which is mentioned in or deemed to be mentioned or included in the First Schedule to the Inebriates Act, 1898, shall, if not subject to disqualification under the principal Act, be disqualified for receiving or continuing to receive an old age pension for a period of six months after the date of his conviction, unless the court before whom he is convicted direct to the contrary.

Limitations  
with respect to  
the payment  
of old age  
pensions.

5. A sum shall not be paid on account of an old age pension—

- (a) to any person while absent from the United Kingdom ;  
or
- (b) if payment of the sum is not obtained within three months after the date on which it has become payable.

Amendments  
with respect to  
the raising and  
determination  
of questions as  
to old age  
pensions.

6.—(1) It is hereby declared that a question may be raised at any time—

- (a) whether at any time or during any period a person has been in receipt of an old age pension when the statutory conditions were not fulfilled, or when he was disqualified for receiving the pension ; and
- (b) whether a person has been at any time or during any period in receipt of a pension at a certain rate when his means exceeded the amount which justified the payment of a pension at that rate, and, if so, at what rate the pension, if any, should have been paid ; and
- (c) whether a person who is in receipt of a pension at a certain rate is, having regard to his means, entitled to a pension at a higher or a lower rate, and, if so, at what rate the pension (if any) should be paid ;

and that an application may be made at any time to alter or revoke a provisional allowance of a claim for a pension.

(2) Section seven of the principal Act shall apply to any such question or application as it applies to the questions mentioned in that section.

(3) Any such question may be raised notwithstanding that the decision of the question involves a decision as to the

correctness of a former decision of the local pension committee or central pension authority as the case may be, but, where by a later decision a former decision is reversed, a person who has received any sums on account of an old age pension in accordance with the former decision shall, notwithstanding anything in subsection (2) of section nine of the principal Act, in the absence of any fraud on his part, be entitled to retain any sum so received up to the date of the later decision which he would have been entitled to retain but for the reversal of the former decision.

(4) Where a question is raised as to the disqualification of a person to receive an old age pension and it is alleged that the disqualification has arisen since the person has been in receipt of the pension, and that the disqualification is continuing at the time the question is raised, or, if it has ceased, has ceased less than three weeks before that time, the payment of the pension shall be discontinued, and no sum shall be paid to the pensioner on account of the pension after the date on which the question is raised: Provided that, if the question is decided in favour of the pensioner, he shall be entitled to receive all sums which would have been payable to him if the question had not been raised.

(5) If the decision on any question involves the discontinuance of an old age pension, or the reduction of the rate at which the pension is paid, or if, in a case where the payment of the pension has been discontinued on the raising of the question, the question is not decided in favour of the pensioner, the person in respect of whose pension the decision is given shall not be entitled to receive a pension or to receive a pension at a rate higher than that determined by the committee or authority, as the case may be, notwithstanding any change of circumstances, unless he makes a fresh claim for the purpose and the claim is allowed, or, in a case where he alleges that he is entitled to receive a pension at a higher rate, raises a question for the purpose and the pension is allowed at a higher rate.

(6) It is hereby declared that a pension officer, if dissatisfied with any refusal or neglect of a local pension committee to consider a claim or determine a question, has, under paragraph (d) of subsection (1) of section seven of the principal Act, a right to apply to the central pension authority as a person aggrieved within the meaning of that provision.

**7.**—(1) Subsection (2) of section nine of the principal Act shall apply, with the necessary modifications, to cases where an old age pension is received at a higher rate than that appropriate to the case as it applies to cases where a person has been in receipt of an old age pension while the statutory conditions were not fulfilled.

**Amendments  
of section 9 of  
principal Act.**

(2) For the purposes of subsection (2) of section nine of the principal Act and this section, any decision of the local pension committee under section seven of the principal Act on any question which is not referred to the central pension

authority and the decision of the central pension authority on any question which is referred to them under that section shall be conclusive proof of any matters decided by the committee or the authority.

A copy of any decision of the local pension committee or central pension authority, if authenticated in manner provided by regulations to be made for the purpose under section ten of the principal Act, shall be received in evidence.

(3) Where any person who is in receipt of an old age pension is liable to repay to the Treasury any sums under subsection (2) of section nine of the principal Act in consequence of the finding of a local pension committee, or of the central pension authority in the case of a question referred to them, the Treasury shall be entitled, without prejudice to their powers under that subsection, to direct the deduction of those sums from any sums to which that person becomes entitled on account of an old age pension, in manner to be provided by regulations to be made for the purpose under section ten of the principal Act:

Provided that, in the case of a personal representative, the deduction shall only be made from any sums to which that person becomes entitled as a personal representative.

(4) A court of summary jurisdiction in Ireland shall have the same power as a court of summary jurisdiction in England, in the case of a person convicted for an offence under subsection (1) of section nine of the principal Act, to impose a fine not exceeding twenty-five pounds instead of imprisonment, if they think that the justice of the case would be better met by a fine than by imprisonment.

Saving for  
existing  
pensioners.

8. The provisions of this Act modifying the statutory conditions for the receipt of an old age pension shall not operate—

- (a) so as to disentitle any person who is in receipt of such a pension at the time of the commencement of this Act to continue to receive his pension; or
- (b) so as to reduce the rate of pension to which such a person is entitled.

Short title and  
construction.

9.—(1) The enactments mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

(2) Any reference in this Act to the principal Act or any enactment therein shall, unless the context otherwise requires, be construed as references to that Act or enactment as amended by this Act.

(3) This Act shall be read as one with the principal Act, and may be cited as the *Old Age Pensions Act, 1911*; and this Act and the principal Act may be cited together as the *Old Age Pensions Acts, 1908 and 1911*.

## SCHEDULE.

Section 9.

### ENACTMENTS REPEALED.

| Session and Chapter. | Short Title.                    | Extent of Repeal.                                                                                                                                                                                                                                                                                                                |
|----------------------|---------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8 Edw. 7. c. 40      | The Old Age Pensions Act, 1908. | In paragraph (2) of section two the words "and has had his residence " as defined by regulations under " this Act in the United Kingdom"; subsections (1) and (2) of section four; and the words "and for defining the meaning " of residence for the purposes " of this Act" in paragraph (a) of subsection (1) of section ten. |

## CHAPTER 17.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [18th August 1911.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

**1.**—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely:—

Grants for public works.

- (a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of five million pounds:
- (b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of five hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.  
c. 16.

**2.** Whereas it is expedient that the principal of the several local loans specified in the schedule to this Act should, to the extent specified in the last column of that Schedule, not be

Certain debts not to be reckoned as assets of local loans fund.